

The [Environment Protection and Biodiversity Conservation Act 1999](#) (EPBC Act) is Australia's national environmental legislation. It protects nationally significant animals, plants, habitats and places. These are known as 'matters of national environmental significance (MNES)'.

Agricultural land managers play a key role in protecting the environment and should understand their responsibilities under environmental laws, including the EPBC Act.

The EPBC Act works alongside state and territory legislation. You may still need approval under the EPBC Act, even if a state, territory or local government has approved your activity.

When approval may be needed

If you are planning an activity that could significantly impact a matter of national environmental significance (MNES), such as clearing vegetation, you may need to refer the matter to the National Environmental Protection Agency (National EPA) for assessment.

Learn more about:

Agriculture and the EPBC Act guide

The National EPA has developed the [Agriculture and the EPBC Act guide](#) to help farmers, landholders and agricultural stakeholders better understand their obligations under the EPBC Act.

The guide explains changes to land-clearing exemptions that commenced on 2 December 2025 and provides information to help determine whether approval may be required.

For more information about the EPBC Act, see the following:

- [Environment Protection and Biodiversity Conservation Act 1999 \(EPBC Act\)](#)
- [Reforms to land clearing exemptions](#)

Continuation of Use exemption

Section 43B of the EPBC Act provides an exemption for the lawful continuation of land that pre-dates the Act. Actions covered by this exemption:

- do not require a self-assessment
- can be taken without approval.

From 1 December 2025, you can no longer claim a continuation of use exemption to clear vegetation:

- that has not been cleared in the last 15 years (unless it is part of a forestry operation)
- that is within 50 meters of a watercourse, wetland or a drainage line in the Great Barrier Reef catchment area.

Get in touch

If you have any questions about making a referral under the EPBC Act, contact the National EPA:

- Email: epbc.referrals@nationalepa.gov.au
- Call 1800 976 422

Source: <https://www.agriculture.gov.au/agriculture-land/farm-food-drought/natural-resources/vegetation/epbc-act-and-agriculture>